RAY KIM LAW, APC
Raymond Y. Kim (SBN 251210)
355 South Grand Avenue, Suite 2450
Los Angeles, CA 90071
Tel: 833-729-5529
Fax: 833-972-9546
Email: ray@raykimlaw.com

Attorney for Plaintiff
MIGUEL LERMA

MORGAN, LEWIS & BOCKIUS LLP
Andrew P. Frederick (SBN 284832)
Aleksandr Markelov (SBN 319235)
1400 Page Mill Road
Palo Alto, CA 94304
Tel: +1.650.843.4000
Fax: +1.650.843.4001
andrew.frederick@morganlewis.com
aleksandr.markelov@morganlewis.com

Attorneys for Defendants
AMAZON.COM SERVICES LLC and
AMAZON LOGISTICS, INC.

(Counsel for Defendant Accurate Background, LLC Listed on Next Page)

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

MIGUEL LERMA, JR., individually and on behalf of all others similarly situated,

Plaintiff,

vs.

AMAZON.COM SERVICES, LLC., AMAZON LOGISTICS, INC., ACCURATE BACKGROUND, LLC, and DOES 1-5,

Defendants.

Case No. 8:22-cv-01727-FWS-JDE

STIPULATION EXTENDING DEFENDANTS' DEADLINE TO RESPOND TO FIRST AMENDED COMPLAINT AND SETTING BRIEFING SCHEDULE FOR DEFENDANTS' MOTIONS TO DISMISS

Ctrm: 10D
Judge: Hon. Fred W. Slaughter

TROUTMAN PEPPER HAMILTON SANDERS LLP
Jessica Lohr (SBN 302348)
11682 El Camino Real, Suite 400
San Diego, CA 92130-2092
Telephone: 858.509.6044
Facsimile: 858.509.6040
Email: jessica.lohr@troutman.com

Attorneys for Defendant
ACCURATE BACKGROUND, LLC

Plaintiff Miguel Lerma, Jr. ("Plaintiff"), Defendants Amazon.com Services LLC and Amazon Logistics, Inc. (together, "Amazon"), and Defendant Accurate Background, LLC ("Accurate") (collectively, "the Parties"), by and through their respective counsel, hereby submit the following stipulation requesting that the Court enter an order extending Defendants' deadline to respond to the First Amended Complaint ("FAC") to December 15, 2022, and setting a briefing schedule for Defendants' motions to dismiss the FAC.

WHEREAS, on September 21, 2022, Plaintiff filed the original Complaint in the above-entitled action and served the Complaint on Amazon and Accurate Background, Inc.;

WHEREAS, in the Complaint, Plaintiff asserted the following claims for relief: (1) a claim under California's Megan's Law, Cal. Pen. Code § 290.46 *et seq.* (against Defendants); (2) a claim under the California Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786.18 (against Accurate); (3) a claim under the Fair Credit Reporting Act, 15 U.S.C. § 1681b(b)(1) (against Accurate); and (4) a claim under California's Unfair Competition Law, Business & Professions Code § 17200 (against Defendants);

WHEREAS, on October 21, 2022, pursuant to Local Rule 8-3, the Parties stipulated to extending the time for Amazon and Accurate to respond to the Complaint to November 23, 2022, *see* ECF Nos. 12 and 14;

WHEREAS, the Parties began meeting and conferring about Defendants' anticipated motions to dismiss the Complaint;

WHEREAS, on November 15, 2022, Plaintiff filed his First Amended Complaint ("FAC") adding a claim under the California Fair Chance Act, Cal. Gov't Code § 12952 against Amazon, *see* ECF No. 20 and naming Accurate Background, LLC in the place of Accurate Background, Inc.;

WHEREAS, Amazon's deadline to respond to the FAC is November 29, 2022 and Accurate's deadline to respond to the FAC is December 6, 2022;

WHEREAS, to allow the Parties additional time to meet and confer regarding Defendants' anticipated motions to dismiss, the Parties agree that Defendants' deadline to respond to the Complaint should be continued to and including December 15, 2022;

WHEREAS, the Parties further agree that the following briefing schedule should be set for Defendants' motions to dismiss: (1) December 15, 2022 – deadline for Defendants to file their motions; (2) January 19, 2023 – deadline for Plaintiff to file oppositions to Defendants' motions; (3) February 2, 2023 – deadline for Defendants to file replies in support of their motions; and (4) hearing on Defendants' motions on February 16, 2023 at 10 a.m.

NOW, IT IS HEREBY STIPULATED AND AGREED, by and through the Parties' respective counsel that Defendants' deadlines to respond to the First Amended Complaint will be extended up to and including December 15, 2022. In addition, the Parties agree on the following briefing schedule for Defendants' motions to dismiss the First Amended Complaint:

Event	Deadline/Date
Deadline for Defendants to file Motions to Dismiss First Amended Complaint	12/15/2022
Deadline for Plaintiff to file Oppositions to Motions to Dismiss	1/19/2023
Deadline for Defendants to file Replies in Support of Motions to Dismiss	2/02/2023
Hearing on Defendants' Motions to Dismiss	2/16/2023 @ 10 a.m.

IT IS SO STIPULATED.

Dated: November 21, 2022

RAY KIM LAW, APC

By */s/ Raymond Y. Kim*
Raymond Y. Kim

Attorneys for Plaintiff
MIGUEL LERMA, JR.

Dated: November 21, 2022

MORGAN, LEWIS & BOCKIUS LLP

By: */s/ Andrew P. Frederick*
Andrew P. Frederick
Aleksandr Markelov

Attorneys for Defendants
AMAZON.COM SERVICES, LLC;
AMAZON LOGISTICS

Dated: November 21, 2022

TROUTMAN PEPPER HAMILTON SANDERS LLP

By: */s/ Jessica Lohr*
Jessica Lohr

Attorneys for Defendants
ACCURATE BACKGROUND, LLC

ATTESTATION

Pursuant to Local Rule 5-4.3.4(a)(2)(i), I hereby attest that all other signatories listed, and on whose behalf the filing is submitted, concur in the filing's content and have authorized the filing.

Dated: November 21, 2022

MORGAN, LEWIS & BOCKIUS LLP

By: */s/ Andrew P. Frederick*
Andrew P. Frederick
Aleksandr Markelov

Attorneys for Defendants
AMAZON.COM SERVICES, LLC;
AMAZON LOGISTICS